

25STCV20350 25STCV20350

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C507%2C08%2F07%2F2026

Source SHA-256: de6822f0b0b4f80c7b8ab18fb3c13bd485b70cf05853f6d22cf782219ce046f7

Case Number: 25STCV20350 Hearing Date: August 7, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: August 7, 2026 TRIAL DATE: February 8, 2028

CASE: Aundra Cunningham v. FCA US LLC, et al.

CASE NO.: 25STCV20350

MOTION

FOR JUDGMENT ON THE PLEADINGS

MOVING PARTIES: Defendants FCA US LLC and San Leandro Chrysler Dodge Jeep Ram

RESPONDING PARTY: Plaintiff Aundra Cunningham

CASE HISTORY:

07/01/25: Complaint filed.

TENTATIVE RULING:

Defendants' Motion for Judgment on the Pleadings is GRANTED
with 20 days leave to amend.

Moving Party to
give notice.

BACKGROUND

This is a lemon law action.

DISCUSSION:

Motion for Judgment on the Pleadings

Legal Standard

A defendant
may move for judgment on the pleadings where the court
has no jurisdiction of the subject of the cause of action alleged in the
complaint or the
complaint does not state facts sufficient to constitute a cause of action
against that defendant. (Code Civ. Proc., § 438 subd. (c)(1)(B).) A
non-statutory motion for judgment on the pleadings may be made any time before
or during trial. (Stoops v. Abbassi (2002) 100
Cal.App.4th 644, 650.) "Such motion may be made on the same ground as
those supporting a general demurrer, i.e., that the pleading at issue fails to
state facts sufficient to constitute a legally cognizable claim or
defense." (Ibid.)

"In the
construction of a pleading, for the purpose of determining its effect, its
allegations must be liberally construed, with a view to substantial justice
between the parties." (Code Civ. Proc., § 452; see also Stevens
v. Superior Court (1999)
75 Cal.App.4th 594, 601.) "When a court evaluates a complaint, the
plaintiff is entitled to reasonable inferences from the facts pled." (Duval
v. Board of Tr. (2001) 93
Cal.App.4th 902, 906.) "In deciding
or reviewing a judgment on the pleadings, all properly pleaded material facts
are deemed to be true, as well as all facts that may be implied or inferred
from those expressly alleged." (Fire Ins. Exch. v. Superior Court (2004) 116
Cal.App.4th 446, 452.) A motion for judgment on the pleadings normally
does not lie as to a portion of a cause of action. (Ibid.) "In the case

of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action." (Gami v. Mullikin Medical Ctr. (1993) 18 Cal.App.4th 870, 876.)

Fifth Cause of Action: Negligent Repair

Defendant

demurs to the fifth cause of action for negligent repair, arguing that it is barred by the economic loss rule and Plaintiff fails to plead the element of damages.

The elements for negligence are: (1) a legal duty owed to the plaintiff to use due care; (2) breach of duty; (3) causation; and (4) damage to the plaintiff. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.) In California, negligence may be pleaded in general terms. (Landeros v. Flood (1976) 17 Cal.3d 399, 407-408.) "One who undertakes repairs has a duty arising in tort to do them without negligence." (Southwest Forest Industries, Inc. v. Westinghouse Elec. Corp. (9th Cir. 1970) 422 F.2d 1013, 1020.)

"[A] demurrer

based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense." (McKenney v. Purepac Pharmaceutical Co. (2008) 167 Cal.App.4th 72, 78-79; see Cross Talk Productions, Inc. v. Jacobson (1998) 65 Cal.App.4th 631, 635; see also Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 23 ["[T]he economic loss rule does not act as an absolute bar to tort recovery in every case in which the parties have a contractual relationship."]) Under California law, the economic loss rule does not bar all cases involving the negligent performance of services. (North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 777-781; J'Aire Corp. v. Gregory (1979) 24 Cal.3d 799.) Plaintiff's complaint does not affirmatively disclose that the damages alleged are only economic losses such as prospective economic advantage, and no other damages such as property damage (i.e., to the car itself).

Thus, the motion for judgment on the

pleadings is denied on this ground.

However,

Plaintiff has not adequately pled the element of damages. The complaint alleges that these causes of action arise out of the warranty obligations of FCA in connection with a motor vehicle for which FCA issued a written warranty. (Compl., ¶ 11.) Thus, it appears the repairs were covered by the warranty. While Plaintiff alleges she suffered damages from Defendants' failure to properly store, prepare and repair the vehicle, if the repairs were covered by the warranty, it is unclear what damages she sustained.

Thus, the motion for judgment on the pleadings is GRANTED with leave to amend.

CONCLUSION:

Accordingly, Defendants' Motion for Judgment on the Pleadings is GRANTED with 20 days leave to amend.

Moving Party to give notice.

IT IS SO ORDERED.

Dated: August 7, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt

the tentative, and may issue an order which modifies the tentative ruling in whole or in part.